

1 ENGROSSED HOUSE
2 BILL NO. 4105

By: Ford and Deck of the House

3 and

4 Hamilton of the Senate
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6 An Act relating to professions and occupations;
7 amending 59 O.S. 2021, Section 1750.2, which relates
8 to the Oklahoma Security Guard and Private
9 Investigator Act; clarifying the definition of
10 security guard; exempting certain persons from
11 definition; and providing an effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 59 O.S. 2021, Section 1750.2, is
14 amended to read as follows:

15 Section 1750.2. As used in the Oklahoma Security Guard and
16 Private Investigator Act:

17 1. "Client" means any person or legal entity having a contract
18 with a person or entity licensed pursuant to the Oklahoma Security
19 Guard and Private Investigator Act, which contract authorizes
20 services to be performed in return for financial or other
21 considerations;

22 2. "Council" means the Council on Law Enforcement Education and
23 Training;
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1 3. "License" means authorization issued by the Council pursuant
2 to the Oklahoma Security Guard and Private Investigator Act
3 permitting the holder to perform the functions of a security guard,
4 armed security guard, private investigator, investigative agency, or
5 security agency;

6 4. "Private investigator" means a person who is self-employed,
7 or contracts with, or is employed by an investigative agency for the
8 purpose of conducting a private investigation and reporting the
9 results to the employer or client of the employer relating to:

- 10 a. potential or pending litigation, civil or criminal,
- 11 b. divorce or other domestic investigations,
- 12 c. missing persons or missing property, or
- 13 d. other lawful investigations, but shall not include:

14 (1) a person authorized or employed by the United
15 States government, any state government, or any
16 agency, department, or political subdivision
17 thereof while engaged in the performance of
18 official duties,

19 (2) a person or employee of a firm, corporation or
20 other legal entity engaged exclusively in a
21 profession licensed by any board, commission,
22 department or court of this state, or

23 (3) a bona fide, salaried, full-time employee of a
24 firm, corporation or other legal entity not in

1 the primary business of soliciting and providing
2 private investigations, who conducts
3 investigations that are exclusive to and
4 incidental to the primary business of said firm,
5 corporation or entity, and when the costs of such
6 investigations are not charged directly back to
7 the particular client or customer who directly
8 benefits from the investigation;

9 5. "Armed private investigator" means a private investigator
10 authorized to carry a firearm;

11 6. "Security agency" means a person, firm, corporation, or
12 other private legal entity in the business of security guard
13 services or armed security guards for hire;

14 7. "Security guard" means an individual contracting with or
15 employed by a security agency, private business or person to prevent
16 trespass, theft, misappropriation, wrongful concealment of
17 merchandise, goods, money or other tangible items, or engaged as a
18 bodyguard or as a private watchman to protect persons or property,
19 but shall not include:

- 20 a. for individuals operating unarmed, any person employed
21 as a private watchman or security guard by one
22 employer only in connection with the affairs of such
23 employer where there exists an employer-employee
24 relationship,

1 b. for any event including, but not limited to, concerts,
2 festivals, and sporting events, for individuals
3 operating unarmed, any person contracted as an usher
4 queue agent, ticket agent, gate agent, credential
5 verification agent, or person whose duties include the
6 operation of electronic detection devices and checking
7 of personal items and bags, or similar role,

8 c. a full-time or active reserve certified peace officer
9 of the United States, this state, or any political
10 subdivision of either:

11 (1) while such peace officer is engaged in the
12 performance of his or her official duties within
13 the course and scope of his or her employment
14 with the United States, this state, or any
15 political subdivision of either,

16 (2) while such peace officer is engaged in the
17 performance of his or her duties as a railroad
18 police officer,

19 (3) who receives compensation for private employment
20 on an individual or an individual independent
21 contractual basis as a patrolman, guard, or
22 watchman if such person is employed in an
23 employer-employee relationship or is employed on
24 an individual contractual basis, or

(4) who receives compensation from an employer-employee relationship or an individual independent contractor basis with any licensed security agency as defined in this section or any private business or person to perform security or investigative services,

~~e.~~

d. any person whose terms of employment as a security guard are governed by a collective bargaining agreement on May 9, 1989, and

~~d.~~

e. any person who is employed as a full-time security guard by a financial institution on May 9, 1989;

8. "Armed security guard" means a security guard authorized to carry a firearm;

9. "Investigative agency" means a self-employed private investigator, a firm, a corporation, or other private legal entity in the business of soliciting the business of private investigation and/or providing private investigations and investigators;

10. "Special event" means a public activity in the form of an athletic contest, charity event, exposition or similar event that occurs only on an annual or noncontinuing basis; and

11. "Special event license" means a temporary license issued pursuant to the Oklahoma Security Guard and Private Investigator Act

1 which restricts the license holder to employment as a security guard
2 only for the duration of a particular event.

3 SECTION 2. This act shall become effective November 1, 2026.

4 Passed the House of Representatives the 23rd day of March, 2026.

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Presiding Officer of the House
of Representatives

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9 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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